

NDA Template

1. Definition of Confidential Information

"Confidential Information" means any non-public information disclosed by either party to the other, whether orally, in writing, or by inspection of tangible objects, that is designated as confidential or that reasonably should be understood to be confidential.

2. Obligations of Receiving Party

The Receiving Party shall hold and maintain the Confidential Information in strict confidence, using the same degree of care that it uses to protect its own confidential information, but in no event less than reasonable care.

3. Exclusions from Confidential Information

Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was known to the Receiving Party prior to disclosure; (c) is independently developed without use of Confidential Information; or (d) is rightfully obtained from a third party without restriction.

4. Term and Termination

This Agreement shall remain in effect for a period of two (2) years from the date of execution. Either party may terminate this Agreement with thirty (30) days written notice.

5. Return of Materials

Upon termination or request, the Receiving Party shall promptly return or destroy all materials containing Confidential Information and certify in writing that it has done so.

6. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.